Date : 30-Dec-2025

To,
Ms. Swati Saha
Emp.No. 196311
TCS - Kolkata

Dear Ms. Swati Saha,

We are pleased to confirm your temporary deputation to our TCS overseas United Kingdom branch with effect from 02-Jan-2026 for a period of 2 years has been approved, subject to the following strict compliance conditions being met.

Your deputation is conditional upon you securing the necessary work permit / visa and any other client specific / mandatory governance background checking verification requirements and satisfactory approvals being in place, prior to commencing your deputation to the TCS United Kingdom branch. We would advise you not to make any confirmed travel arrangements until we send you confirmation that the above matters have been satisfactorily completed.

This deputation agreement is conditional upon you being able to work and remain in the United Kingdom for the required period. In the event that the background checking verification requirements prove to be unsatisfactory, TCS reserves the right to immediately withdraw your offer of deputation. If you are aware of any issues which may affect the satisfactory outcome of your background checks, please let us know immediately.

You warrant that following the satisfactory UK Visa / other mandatory certification entry approvals being granted, you are entitled to work in the UK without any additional restrictions and will notify the Company immediately if you cease to be so entitled. You may be required to produce original documentary evidence of your eligibility to work and stay in the UK to the relevant authorities at any time on request. Please ensure that all relevant documents relating to your right to work and remain in the UK are kept safe for future reference.

TCS will assist you with the formalities required to enable you to obtain the appropriate visa / work permit for this deputation. During your deputation, you will work under the control and direction of the host country's designated management team and will be required to abide by the policies and procedures applicable to the host country and its clients at all times.

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Your hours of work will be at the discretion of the host country's designated management team and will be informed to you in advance.The host country complies with the stated provisions appertaining to the Working Time Regulations that provide a limit on the amount of weekly working time that can be carried out at an average of no more than 48 hours in any rolling 17-week consecutive period. As an employee, you can agree to opt out of this provision. By accepting on this deputation, you acknowledge that you may be required to work in excess of an average of 48 hours per week from time to time and that the limit on working time will not apply to you during your deputation period. You are, if required, entitled to terminate this opt-out agreement at any time by giving not less than three months' prior written notice, addressed to the UK Human Resources team, should you so desire.

You shall continue to support TCS by providing services to its business operations / internal support function, in line with your specific skills, knowledge and experience. Once your deputation in the United Kingdom is complete, whether as stated above or earlier if required, you will return to your TCS base branch in India or such other place that TCS may deem fit.

The details of your assignment are as follows:

- You have joined TCS on 03-Oct-2006 and have completed 19 years and 2 months with TCS with 19 years and 2 months of experience in Computer Consultancy
  You have a Master Of Engineering and the necessary experience and knowledge of the tools and technology of TCS. You are currently holding the role of Technical Architect
- On the basis of the above specialist knowledge, you have been selected for a Technical Architect.

The terms and conditions of this Deputation Letter are not in substitution, but are in addition to, the terms and conditions as outlined in the International Assignment Agreement dated 30-Dec-2025 ("**International Assignment Agreement**") and your continuous Employment Contract dated 30-Dec-2025 ("**Contract of Employment**").

During the period of Deputation, your emoluments will be paid to you by TCS Ltd., UK branch Payroll. Your emoluments will be as outlined in Annexure 1. This will be paid to you post all deductions required by law (including applicable withholding taxes and statutory deductions) or otherwise voluntarily authorized by you.

You will be responsible for the payment of any other applicable taxes and statutory obligations both in India and the UK.

Please note that taxes from India Salary will be deducted based on your residential status in India in respective financial year. Residential status is computed based on your deputation start and end date (personal stay post the deputation end date is not encouraged).

In the year of return to India, you would be considered to be a Resident if you satisfy anyone of the below

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mentioned conditions (the days are calculated based on your overseas assignment start and end date):

- 182 days or more in the subject financial year or
- 60 days or more in the subject financial year and 365 days in the 4 years preceding subject financial year.

If you are Resident Indian as per above conditions, India salary processed during the subject financial year including the period of overseas assignment is taxable in India and Taxes for same will be deducted from your salary upon your return back.

The period of deputation will be treated as approved service with the Company and will be counted for the purposes of your continuous employment, based on the service you will be entitled to receive, as applicable in your individual situation, while on deputation i.e. for Promotion and Annual Increments, Provident Fund, Superannuation Fund and Gratuity contributions. For the avoidance of doubt, we confirm that your Employment Contract with the Company will continue without any break in service.

During your deputation to the TCS United Kingdom branch, your working hours, emoluments, accident and health insurance cover, leave, social security benefits, travel benefits for dependents and other benefits shall be as per the TCS India Policy - International Assignments (from India to other Countries).

Before proceeding to the TCS United Kingdom branch, you will be required to undergo TB screening test to ensure that there are evidence of TB that would prevent you from proceeding with the deputation. Any failure to do so may result in the Company cancelling your deputation with immediate effect. TCS will bear the cost of such medical test.

During the deputation to the TCS United Kingdom branch, you will be supervised by the following Resident / Business Relationship Manager ("**Reporting Manager**"). Depending on the Company's on-going resource planning requirements, your reporting line may change throughout the deputation from time to time. Should this be necessary, you will be informed accordingly.

Name of the Manager: Rajat Asthana
Designation / Role: BRM

Whilst on deputation to UK branch, you should ensure to keep a record of the expenditure incurred by you and of the reimbursement / allowance received in return throughout your stay. This may be useful in the event of your being asked by the UK Inland Revenue Authorities or the equivalent in India ("Home Country") to furnish on such details for relevance of potential investigations into Tax / National Insurance or the equivalent revenue transactions.

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The supporting documents relating to expenditure on housing, accommodation, conveyance, food etc need to be provided to TCS UK as per the process prescribed by the TCS UK branch, to enable it to provide applicable tax relief to you. In case of a failure to do so, the allowance received in this respect will be subject to appropriate automatic income tax and national insurance contribution deduction to be administered directly from your pay.

As your employer, we are responsible to take reasonable care of your wellbeing at work and whilst on deputation. That duty extends to providing appropriate information, instruction and training. It is the policy of the Company that the following internal compulsory on-line compliance training programs are to be completed, preferably before your arrival at the host country, but no later than within the first month of your deputation. Please note that should this training not be completed within this period, you may not be permitted to continue your deputation. We welcome your full cooperation to ensure early completion of this training is undertaken.

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Title	Delivery Type	iEvolve Course ID
Information Security @ TCS iSecurity Knowledge Verification Quiz	iEvolve Web Based Training	WBT - 43893 Verification Quiz - 7480
Anti-Bribery & Corruption Awareness Bribery and Corruption Knowledge Quiz	iEvolve Web Based Training	WBT - 49587 Verification Quiz - 2327
Intellectual Property Rights (IPR)	iEvolve Web Based Training	53993
Occupational Health and Safety @ TCS - UK	iEvolve Web Based Training	5244
Fire Safety Awareness - UK	iEvolve Web Based Training	8159
Compliance to Tata Code of Conduct	iEvolve Web Based Training	21939
Workplace Anti Bullying and Harassment	iEvolve Web Based Training	53593

Your performance and suitability for this deputation will be monitored throughout. If for whatever reason, the respective TCS host or base country management team and / or our client decide that your presence is no longer required, we reserve the right to terminate your deputation with immediate effect and without further consultation with you. Should an earlier than anticipated end to the deputation period be required for any reason, you will revert back to your original role or to any other role deemed suitable for you by TCS in your base branch in India, or in any other country as TCS may deem to be fit.

TCS considers the protection of its business interests to be of the utmost importance and it is a condition of this agreement that you agree to comply with the Immigration laws of the country of deputation and to be bound by the requirements set out below with regard to confidential information and post-employment Restrictive Covenants. You acknowledge and agree that by leaving / exiting any assignment on this deputation before its completion could result in a breach of the terms and conditions of this agreement and may result in the Company taking legal action against you personally and / or any future employer.

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CONFIDENTIAL INFORMATION

In this clause:

"Confidential Information" means all and any information of a confidential nature, in whatever form, of or relating to the Company or any Group Company which you (or, where the context so requires, another person) have obtained by virtue of your employment or engagement and which the Company or any Group Company regards as confidential, including (but not limited to):

(a) financial information, intellectual property rights and inventions, marketing plans, results and forecasts, sales targets and statistics, market share and pricing statistics, profit margins, price lists, discounts, credit and payment policies and procedures;

(b) which becomes available to the public generally other than by reason of a breach by you of your obligations under this agreement; information relating to business methods, corporate plans, business strategy, management systems, maturing new business opportunities, tenders, advertising and promotional material;

(c) information relating to and details of customers, prospective customers, suppliers and prospective suppliers including their identities, business requirements, their accounts with and contractual arrangements and negotiations with the Company or any Group Company;

(d) details of employees, officers and workers of and consultants to the Company or any Group Company, their remuneration details, job skills and capabilities and other personal information;

(e) information relating to trade secrets, research activities, development projects, inventions, designs, know-how, technical specification and other technical information in relation the development or supply of any future product or service of the Company or any Group Company and information concerning the intellectual property portfolio and strategy of the Company or of any Group Company; and

(f) any information in respect of which the Company or any Group Company is bound by an obligation of confidence to a third party.

1.1 You will not (save in the proper course of your duties or as specifically authorised by the Company) either during the Overseas Deputation period or at any time after its termination (howsoever arising) directly or indirectly:

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1.1.1 use any Confidential Information;

1.1.2 disclose or permit the disclosure of Confidential Information to any person, company, or organisation whatsoever; or

1.1.3 make or use any Copies.

1.2 You are responsible for protecting the confidentiality of the Confidential Information and shall:

1.2.1 use your best endeavours to prevent the use or communication of any Confidential Information by any unauthorised person, company or organisation; and

1.2.2 inform the Company immediately upon becoming aware, or suspecting, that any such person, company or organisation knows or has used any Confidential Information.

1.3 The restrictions above shall not apply to information which you or another person may be ordered to disclose by a court of competent jurisdiction or which you disclose pursuant to and in accordance with the Public Interest Disclosure Act 1998, provided you have complied with the Company's policy (if any) from time to time regarding such disclosures, or as may be required by law.

2. **Restrictive Covenants**
2.1 In this clause:

"Capacity" means as agent, consultant, director, employee, owner and shareholder or in any other capacity;

"Customer" means any person, firm, company or entity who or which at any time during the Relevant Period (i) was provided with goods or services by the Company or any Group Company; or (ii) was in the habit of dealing with the Company or any Group Company, other than in a de minimis way, and about whom or which you have confidential information; and in each case with whom or which you, or any person who reported directly to you, had material dealings at any time during the Relevant Period;

"Key Employee" means any person who immediately prior to the Termination Date was employed or engaged by the Company or any Group Company in a sales, technical, managerial or director-level role or above, or any other person employed or engaged by the Company or any Group Company who could materially damage the interests of the Company or any Group Company if they were involved in any Capacity in any business which competes with any Restricted Business, and with whom you had personal dealings during the Relevant Period;

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"Prospective Customer" means any person, firm, company or entity to whom or which, during the period of twelve months prior to the Termination Date, the Company or any Group Company had submitted a tender, made a pitch or presentation or with whom or which it was otherwise negotiating for the supply of goods or services and with whom or which you, or any person who reported directly to you, had material dealings at any time during the Relevant Period;

"Relevant Period" means the period of 12 months ending on the Deputation periods Termination Date;

"Restricted Business" means those parts of the business of the Company and any Group Company with which you were involved to a material extent during the Relevant Period;

"Supplier" means any person, firm, company or entity who or which was at any time during the Relevant Period a supplier of services or goods (other than utilities and goods or services supplied for administrative purposes) to the Company or any Group Company and with whom or which you, or any person who reported directly to you, had material dealings during the Relevant Period To include, please note this list is non-exhaustive;

"Team Employee" means a Key Employee provided that it shall also include individuals who have been employed or engaged at any time in the 12 months prior to the Termination Date (whether or not they were employed or engaged immediately before the Termination Date) and shall be limited to individuals with whom you have worked as part of the same team;

"Termination Date" means the date on which the Deputation period terminates or, if you spend a period on Garden Leave immediately before the termination period, such earlier date on which Garden Leave commences.

2.2 You covenant with the Company (for itself and as trustee and agent for each Group Company) that you will not, directly or indirectly, on your own behalf or on behalf of or in conjunction with any firm, company or person:

2.2.1 for twelve months following the Termination Date be engaged, concerned or involved in any Capacity with any business which is (or intends to be) in competition with any Restricted Business;

2.2.2 for twelve months following the Termination Date solicit or endeavour to entice away from the Company or any Group Company the business or custom of a Customer or Prospective Customer with a view to providing goods or services to that Customer in competition with any Restricted Business or otherwise induce, solicit or entice or endeavour to induce, solicit or entice any Customer to cease conducting, or reduce the amount of, business with the Company

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or any Group Company or discourage or prevent any Prospective Customer from conducting business with the Company or any Group Company;

2.2.3 for twelve months following the Termination Date be involved with the provision of goods or services to, or otherwise have any business dealings with, any Customer or Prospective Customer in the course of any business which is in competition with any Restricted Business;

2.2.4 for twelve months following the Termination Date solicit or endeavour to entice away from the Company or any Group Company the business or custom of any Supplier in the course of any business which is in competition with any Restricted Business;

2.2.5 for twelve months following the Termination Date be involved with the receipt of goods or services from any Supplier where such receipt would adversely affect the ability or willingness of the Supplier to meet the requirements of the Company or any Group Company;

2.2.6 for twelve months following the Termination Date offer to employ or engage or otherwise endeavour to entice away from the Company or any Group Company any Key Employee (whether or not such person would breach their contract of employment or engagement);

2.2.7 for twelve months following the Termination Date employ or engage or facilitate the employment or engagement of any Key Employee (whether or not such person would breach their contract of employment or engagement) in any business which is in competition with any Restricted Business;

2.2.8 for twelve months following the Termination Date be engaged, concerned or involved in any Capacity with any business which is (or intends to be) in competition with any Restricted Business in conjunction with any Team Employee (whether or not such person would breach their contract of employment);

2.2.9 at any time after the Termination Date represent yourself as being in any way connected with (other than as a former employee), or interested in the business of the Company or any Group Company or use any registered names or trading names associated with the Company or any Group Company.

2.3 None of the restrictions in clauses above shall prevent you from:

2.3.1 holding an Investment;

2.3.2 being engaged or concerned in any business insofar as your duties or work relate solely to geographical areas where that business is not in competition with any Restricted Business; or

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2.3.3 being engaged or concerned in any business insofar as your duties or work relate solely to services or activities of a kind with which you were not concerned to a material extent during the Relevant Period.

2.4 Each of the restrictions contained in this clause (on which you have had the opportunity to take independent legal advice at your own cost) is intended to be separate and severable and while they are considered by the parties to be reasonable in all the circumstances, it is agreed that if any one or more of such restrictions is held to go beyond what is reasonable in all the circumstances for the protection of the legitimate interests of the Company or any Group Company but would be valid if any particular restriction(s) were deleted or some part or parts of its or their wording were deleted, restricted or limited then such restriction(s) shall apply with such deletions, restrictions or limitations as the case may be.

2.5 You agree that you will (at the request and cost of the Company) enter into a separate agreement with any Group Company for which you perform services under which you will agree to be bound by restrictions corresponding to the restrictions contained in this clause (or such similar restrictions as will be appropriate provided that such restrictions shall be no wider in scope than those contained in this clause) in relation to such Group Company.

2.6 You agree that if your employment is transferred to any person, company, firm, organisation or other entity other than the Company or any Group Company (the "New Employer") pursuant to the Transfer of Undertakings (Protection of Employment) Regulations 2006, you will, if required, enter into an agreement with the New Employer that will contain provisions that provide protection to the New Employer similar to that provided to the Company and any Group Company under this clause.

2.7 If, during the deputation period or any period during which the restrictions in the above clauses apply, you receive an offer to be involved in a business in any Capacity, you will notify the person making the offer of the terms of this whole clause as presented above.

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As this Deputation Letter is a contractually legal and binding document that contains commitments by you with respect to your employment with TCS and consequences for breach of those commitments, you should read this letter carefully, to ensure you fully understand the terms before acceptance.

After you have considered the contents of this letter, if you have any questions on any of its contents, you should contact the HR Department. Before accepting your deputation, it is essential that you fully understand all of the terms and conditions you are agreeing to. Your signature on the duplicate copy of this Deputation Letter will be deemed to be your unambiguous confirmation of acceptance to the obligations arising out of this letter and your agreement to the full terms and conditions as presented.

Yours sincerely,,

For and on behalf of Tata Consultancy Services Limited



_____

Authorised Signatory

Employee Name:Chandrasekaran Ramkumar

Employee No:123691

Designation:Global Head - RMG

I confirm that I have fully understood and agree to the terms and conditions of my deputation as provided in this deputation letter, the International Assignment Agreement and Contract of Employment inclusive.

_____

(Signature)

Employee Name: Ms.Swati Saha (196311)

Address: Uttar Bhabanipur(Palpara), Po-Chakda, Dist-Nadia, Wb-741222, , Nadia, Wb, India

Date: 30-Dec-2025

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Date : 30-Dec-2025

Employee Name : Ms.Swati Saha
Employee No : 196311
Uttar Bhabanipur(Palpara), Po-Chakda, Dist-Nadia, Wb-741222, , Nadia, Wb, India

Sub: Terms of Employment.

Dear Ms.Swati Saha

As per the company records your date of joining is 03-Oct-2006.Since the employment letter issued at the time of appointment is not available, we are issuing a fresh employment letter which sets out your terms and conditions of employment with TCS.

Terms of Employment:

1. Compensation and benefits:
Your compensation and benefits will be as detailed in your last annual compensation letter / promotion letter.

2. Working Hours:
As an employee of TCS, you would be required to adhere to the Working Hours in TCSL as defined below:

- TCS follows a 5 day working week.
- The working hours for TCS are defined as 45 hours per week.
- The work timings may vary across locations and all employees are expected to adhere to the Work Timings including the weekly off that may be applicable at that location.

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You may be required to work in shifts and / or in extended working hours, as permitted by law. You may be required to work beyond your existing working hours depending upon the business requirements exigencies from time to time.

3. Mobility:
TCS reserves the right to transfer / utilize your services at any of its offices, work sites, or associated or affiliated companies in India, or outside India, on the terms and conditions as applicable to you at the time of transfer.

4. Increments and Promotions:
Your performance and contribution to the company will be an important consideration for salary increments and promotions. Salary increments and promotions will be based on TCS's Compensation and Promotion Policy.

5. Alternative Employment:
As a full-time employee of TCS, you are not permitted to undertake any other business, assume any public office, honorary or remunerative, without the written permission of TCS.

6. International Assignment Agreement:
If you are on international assignment, you will be covered by the TCS International Assignment policy from the date of deputation.

Accordingly, you will be required to sign the International Assignment Agreement. In case of every international assignment that exceeds thirty (30) days, you will be required to serve TCS as per the Notice Period mentioned below.

This is to ensure that the knowledge and information gained by you during your assignment is shared and available to TCS and its associates. This transfer of knowledge and information is essential for TCS to continue to serve its clients and customers better.

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If you are sent overseas for international training, you will be required to sign an agreement to serve TCS for a minimum period of six (6) months on completion of the training.

7. Confidentiality Agreement:
As part of your appointment as an employee with TCS you are required to maintain strict confidentiality of the intellectual property rights protected information and other business information of TCS and its clients which may be revealed to you by TCS or which may in the course of your engagement with TCS come your possession or knowledge unless specifically authorized to do so in writing by TCS. This Confidentiality Clause shall survive the termination or earlier determination of this Appointment.

8. TATA Code of Conduct:
You are required to adhere to the TATA Code of Conduct and follow the same in your day to day conduct as an employee of TCS.

9. Notice Period:
During your employment with TCS, either you or TCS can terminate the appointment by giving you ninety (90) calendar days written notice or 3 month's basic salary in lieu of the notice.

If you are covered under International Assignment Agreement, either you or TCS can terminate the appointment by giving 90 calendar days written notice as set out in the Separation Policy of TCS.

TCS reserves the right, if it is in the interest of the business and current assignment, to ask you to complete your notice period or decide whether your existing earned vacation or basic salary in lieu of notice period may be adjusted against the entire or partial notice period.

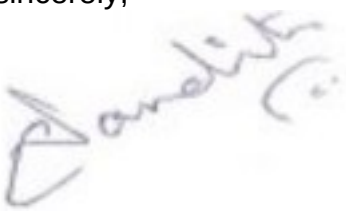
10. Retirement:
You will retire from the services of the Company on reaching your 60th birthday as per the proof of age submitted by you at the time of joining TCS.

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11. Employment in India:
In case, you are not a citizen of India, you are expected to have a valid work permit and / or any other permissions and / or documentation as prescribed by the Government of India for permanent employment with TCS. Keeping your permit / permission up to date during the course of your employment with TCS and submitting a valid copy of that to TCS is your responsibility.

12. Terms and Conditions:
The above terms and conditions of employment are specific to your employment in India and there can be changes to the said terms and conditions in case of international assignments during the course of your employment.

Yours sincerely,



for Tata Consultancy Services Limited.

Girish V Nandimath

Global Head Talent Acquisition

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Date : 30-Dec-2025
Ms.Swati Saha
TCS - Kolkata

Dear Ms.Swati Saha

We are pleased to inform you that Tata Consultancy Services Limited ("TCS") has selected you for an international assignment to an international location, where you will be placed based upon your knowledge and experience, to execute a job for that TCS geography.

You are hereby requested to carefully read the International Assignment Agreement which will govern your placement by TCS internationally. Your International Assignment Agreement is provided with this letter.

Kindly confirm your acceptance of the governing terms and conditions of the International Assignment Agreement by signing the Agreement which is provided as annexure 1.

Wishing you all the best.

With kind regards,
Yours sincerely,
for TATA CONSULTANCY SERVICES LTD.



(Authorized Signatory)
Name: Chandrasekaran Ramkumar
Designation: Global Head - RMG

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ANNEXURE 1 - INTERNATIONAL ASSIGNMENT AGREEMENT GOVERNING TERMS AND CONDITIONS

1. **INTERNATIONAL ASSIGNMENT(S):**

1.1 Swati Saha ("the Employee") may be placed on international assignment at any time during the tenure of the Employee's employment with TCS. TCS reserves the right to determine the duration, including early termination, of any international assignment at any time during the assignment period, as may be required within the context of its operations and/or a job assignment specifically.

This Agreement is conditional and will only become effective upon arrival of the Employee to the international location where he/she has been selected for an international assignment, along with the appropriate visa/work permit. If these pre-conditions have not been satisfied before the commencement of this Agreement, this Agreement will be deemed to be null and void.

1.2 The employment relationship between TCS and the Employee during the international assignment will continue to be governed by the Employment Terms and Conditions Letter signed by you, dated 30-Dec-2025, **("Employment Contract")**. The terms and conditions of this Agreement shall not be construed in substitution to but in addition to the terms and conditions of your employment as stated in your Employment Contract as may be amended from time to time.

1.3 TCS has formulated guidelines,the "International Assignment Policy" for placement of employees on international assignment and this Agreement is governed by those guidelines, as may be applicable. These guidelines are found at Ultimatix->Learning and Collaboration->KNOWMAX->HR Policy Hub. Should any term of this Agreement conflict with the International Assignment Policy, the terms in this Agreement shall prevail.

1.4 TCS and all its Subsidiaries are governed by TCS Global Privacy Policy (https://iqmskm.ultimatix.net/km/index.php?title=Privacy_Policy_Introduction). The Employee, as an owner of his/her personal information, is expected to understand and abide by TCS policies on the one hand and also be sensitized about his/her own privacy. The Employee is expected to take adequate care to ensure that his/her personal information is secure and kept

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private as he/she travel overseas. The Employee may be required to produce his/her TCS ID card at international locations of TCS and its Subsidiaries, and the responsibility of safe custody of the TCS ID card and other personal information solely rests with the Employee.

2. **IMMIGRATION REQUIREMENTS AND COMPLIANCE WITH LAWS**

2.1 TCS shall be responsible to arrange for an appropriate work visa/work permit for the Employee to work in the international location where he/she has been placed on an international assignment for the duration of the international assignment.

2.2 TCS shall arrange to cover all costs for the applicable work visa/work permit for the Employee for working on the international assignment, in line with applicable internal policy and applicable laws. The Employee shall be responsible for having a valid passport.

2.3 The Employee expressly acknowledges that, to work on an international assignment, he/she must cooperate with TCS to ensure compliance with immigration laws applicable to the international location where he/she has been placed on an international assignment,agrees that he/she will abide by all the requirements of immigration, tax and labor and employment laws of such international location and will do nothing deemed unlawful with respect to his/her work visa/work permit and residence status.

2.4 The Employee shall cooperate with TCS for any registration and subsequent deregistration requirements with concerned authorities (e.g. immigration office, tax, social security, or any other concerned authority) upon arrival and prior to departure from the international location where he/she has been placed on an international assignment. The Employee shall communicate with the appointed TCS work visa/work permit personnel for the above purposes and for completion of registration and subsequent deregistration requirements or any requirements under applicable laws.

2.5 The Employee shall abide by the laws and regulations of the international location with respect to the visa/work permit issued to the Employee. The Employee shall not, under any circumstances, participate in any activities that would bring the Employee into conflict with any laws and regulations of the international location. In the event the Employee violates any laws or regulations of the international location, TCS may, at its sole discretion, terminate this Agreement and recall the Employee from the international location at the Employee's own

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cost. The Employee shall cooperate with TCS in taking any remedial measures, complying with any legal notices and/or legal action initiated by authorities under laws and/or regulations of the international location. In such an event, the Employee shall be liable to bear all costs and consequences of the Employee's own violation of the international location's laws and regulations. TCS's decision in this regard will be final and binding on the Employee.

2.6 In case of international assignment(s) to Chile, Mexico, Uruguay, Peru, Colombia, Argentina, Puerto Rico, Brazil, Ecuador, China, Japan, Malaysia, Indonesia, Philippines and Singapore the Employee may have to sign a local employment contract with the TCS Subsidiary at the international location(s) as required by applicable laws at the international location(s). The terms and conditions of this International Assignment Agreement shall be incorporated by reference in such local employment contract(s). Notwithstanding the local employment contract(s) which the Employee may enter into with the TCS Subsidiary at the international location(s), the Employee shall continue to be employed with TCS during the international assignment(s) and upon completion of the international assignment(s), shall be obligated to return to TCS in India or proceed elsewhere as assigned and continue to work with TCS.

3. **SPECIAL TERMS**

(a) The Employee shall be on an international assignment(s) for a job which requires completion within a predetermined time period, in accordance with certain quality standards.He/she shall ensure that stipulations of time and quality standards are adhered to at all times while completing his/her job during the international assignment(s).

(b) The purpose of this Agreement and the international assignment is for the Employee to gain skills and expertise during the international assignment, to other assignments with TCS or its Subsidiary(s), Group Company(s), Sub-Contractor(s). The Employee shall complete all of his/her responsibilities assigned during the international assignment(s) before relocating to India or to another international location as may be directed by TCS.

4. **STATUS OF RESIDENCE IN INTERNATIONAL LOCATION(S)**

(a) TCS shall arrange to obtain a non-immigrant work visa/work permit from the Consulate/Embassy of the international location(s), based on the Employee's representation that while working on an International Assignment(s), he/she does not intend to change

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immigration status in the international location(s) and that he/she will not be seeking a change in status of residence in the international location(s). His/her conduct in the international location(s) shall be consistent with the representation made by TCS, its Subsidiary(s), Group Company(s), Sub- Contractor(s) and/or its Client(s) while seeking the work visa/work permit. After completion of the International Assignment(s) in the international location(s), the Employee shall return to India or relocate to another international location(s) as directed by TCS.

5. **POST INTERNATIONAL ASSIGNMENT(S)**

5.1 The Employee acknowledges and agrees that this Agreement shall not be construed in as a substitution to but in addition to the Employment Contract as may be amended from time to time. Subject to an event of termination of the Employment Contract and this Agreement, the Employee shall continue to be employed with TCS during the international assignment(s) and the Employee will continue to work for TCS in India or elsewhere after the completion of an international assignment(s).

5.2 Employee agrees and confirms to facilitate the transfer of skills and expertise gained during the international assignment(s) to TCS.

5.3 The Employee agrees and confirms to continue with his/her employment with TCS as per terms of the Employment Contract, after completing an international assignment(s).

6. **TRADE SECRETS**

6.1 Definition: The term "Trade Secrets" shall be given its broadest possible interpretation and shall mean any information, including customer lists, pricing policies and information, marketing plans or strategies, or any other formula, pattern, compilation, program, device,method, technique, or process that (i) derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use, and (ii) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.

6.2 Nondisclosure: The Employee acknowledges that from time to time he/she has been and may be provided with the Trade Secrets of TCS, its Subsidiaries, Group Companies, Sub-Contractors and/or its Clients. The Employee agrees that, during the period of employment and thereafter, he/she will not in any manner, directly or indirectly, use for his/her own benefit or the benefit of any other person or entity, or otherwise divulge, disclose, or communicate to

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any person or entity any information concerning any such Trade Secret except as may be required within the scope of the Employee's employment by TCS. All such customer lists, pricing policies and information, marketing plans or strategies, files, records, computer printouts, documents, objects, drawings, specifications, patterns and similar items relating to the business of TCS, its Subsidiaries, Group Companies, Sub-Contractors and/or its Clients, or concerning any Trade Secret, including copies thereof, whether prepared by the Employee or otherwise coming into his/her possession, shall remain the exclusive property of the respective entity or its clients, as the case may be. This covenant of nondisclosure and the Employee's liability for breach of this covenant shall survive the expiration or termination of this Agreement.

6.3 Return of TCS Property: Upon completion of the international assignment(s), the Employee agrees to return to TCS all documents, materials, equipment, machines, and all tangible property of TCS, its Subsidiaries, Group Companies, Sub-Contractors and/or its Clients and shall maintain as confidential any information which cannot be returned.

6.4 Remedy for Disclosure of Trade Secrets: The Employee acknowledges that each of the restrictions contained in this Agreement relating to the nondisclosure of Trade Secrets is reasonable and necessary in order to protect legitimate interests of TCS, its Subsidiaries, Group Companies, Sub-Contractors and/or its Clients and that any violation thereof would cause irreparable damage to TCS, its Subsidiaries, Group Companies, Sub-Contractors and/or its Clients. The Employee acknowledges and agrees that in the event of any violation, TCS shall be entitled to terminate this Agreement, pursuant to the terms of Section 9, and seek from any court of competent jurisdiction, injunctive relief, as well as any equitable compensation for loss or damage caused to TCS's business arising out of any such violation, and any other damages or costs allowed by law. The aforesaid rights and remedies shall be independent, severable and cumulative and shall be in addition to any other rights or remedies of which TCS may be entitled to.

6.5 Confidentiality Agreement: The Employee declares and confirms that he/she shall continue to abide by the terms of the Confidentiality Agreement dated 03-Oct-2006 executed between the Employee and TCS, during his/her international assignment(s). By signing this Agreement, the Employee acknowledges that the provisions of this section 6 shall be deemed to be incorporated by reference in the said Agreement.

7. **INVENTIONS, DESIGNS, COPYRIGHT AND OTHER INTELLECTUAL PROPERTY**

7.1 If at any time during the course of his/her international assignment(s), the Employee makes or participates in the making of any invention or innovation which is capable of being protected as an Intellectual Property Right, directly or indirectly relating to or capable of being

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used by TCS, any TCS group company, or a TCS subsidiary, full details of such invention or innovation shall immediately be disclosed in writing by the Employee to TCS and the Intellectual Property Rights in such invention or innovation shall be the absolute property of TCS. At the request and expense of TCS, the Employee shall give and supply all such information, data, drawings and assistance as may be necessary, or in the opinion of TCS desirable, to enable TCS to exploit the Intellectual Property Rights in such invention or innovation to its best advantage. The Employee shall execute all documents and do all things which may, in the opinion of TCS, be necessary or desirable to obtain patent, copyright, design or other protection for the Intellectual Property Rights in such invention or innovation and for vesting such rights in TCS.

8. **NON SOLICITATION AND NON COMPETE**

8.1 Non-Solicitation: The Employee agrees that, during the period of an International Assignment(s) and for a period of one (1) year following the end of each International Assignment, the Employee will not, directly or indirectly, solicit, or assist anyone else to hire or employ, any employee of TCS, its Subsidiaries and Group Companies, to the extent permitted by the laws of the location of international assignment. The Employee further agrees that at notime may he/she, directly or indirectly; seek to induce any other employee of TCS, its Subsidiaries and Group Companies to leave the employment of TCS, its Subsidiaries, or and Group Companies.

8.2 Non-Compete Clause: The Employee agrees that during the period of an international assignment and for a period of one (1) year following the end of each international assignment, the Employee will not seek or accept any employment and/or consultancy or advisory role or engage in any independent business activity with any client of TCS or its Sub Contractor(s) with whom Employee was engaged during the international assignment, to the extent permitted by the laws of the location of international assignment.

8.3 Remedy for Violation of Non-Solicitation and Non-Compete Clauses: The Employee acknowledges that the restrictions contained in Sections 8.1 and 8.2 are reasonable and necessary in order to protect the legitimate interests of TCS and that a violation thereof would cause irreparable damage to TCS. The Employee further acknowledges and agrees that TCS may seek injunctive relief in any court of competent jurisdiction to prevent any violation or anticipated violation of Sections 8.1 and 8.2, in addition to, any other rights or remedies to which TCS may be entitled to under law.

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9. **TERMINATION**

9.1 TCS may at its sole discretion terminate this Agreement and the Employment Contract may at any time during the period of the international assignment(s) by giving the Employee(s) a ninety (90) days' notice in writing.

9.2 Without prejudice to, and notwithstanding the above, this Agreement and the Employment Contract may at any time during the period of the international assignment(s) be terminated by TCS immediately upon giving a notice in writing, if in the opinion of TCS (which opinion shall be final and binding upon the Employee) the Employee:

(a) Employee commits any serious, repeated or continual breach of: (i) any of his/her obligations under this Agreement; or (2) as set out in the policies and procedures of TCS; or

(b) Employee is guilty of any misconduct or neglect in the discharge of his/her duties under this Agreement; or

(c) by his/her acts or omissions, Employee brings the name and reputation of TCS into serious disrepute or prejudices the interests of the business of TCS ; or

(d) by his/her acts or omissions there are legal grounds for the summary termination of employment.

9.3 In the event of termination pursuant to Section 9.1, TCS shall not be obliged to make any payment to Employee save for, the amount of salary, benefits or any other remuneration, including payment of any accrued but unused leave as per TCS's leave policy, actually accrued (on a pro rata basis) up to and including the date of such termination, and/or such other payments as may be required by law. TCS shall be entitled to deduct from such payment, any sums owing to TCS from the Employee, which deduction Employee expressly hereby consents and authorizes, to the extent allowable by the laws of the location of international assignment. Termination of the Agreement under this sub-clause shall be without prejudice to:

(a) TCS's right to claim the direct losses in business it has suffered through the breach by Employee of any terms and conditions hereto; and

(b) Any other relief to which TCS may be entitled under contract, law or equity.

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9.4 In the event that the Employee is incapacitated by ill health, accident or any other cause from performing his/her duties under this Agreement for a period of ninety [90] working days or more (whether consecutive or not), TCS may terminate this Agreement and the Employee shall then leave the international location immediately, to the extent allowable by the laws of the location of international assignment.

9.5 Termination of this Agreement and the Employment Contract by TCS for any reason whatsoever, will not entitle Employee to claim any termination benefits or compensation whatsoever from TCS, to the extent allowed by the laws of the location of international assignment.

9.6 Upon early termination of the Agreement and the Employment Contract, the Employee shall leave the international location immediately after the date of termination of this Agreement and the Employment Contract. It is however clarified that the terminated Employee(s) shall leave the international location(s) and return to India immediately upon receipt of the termination notice under Section 9.1 or 9.2 as the case maybe. Such terminated Employee(s) shall serve their notice period in terms of Section 9.1 and 9.2 as the case maybe with TCS in India.

10. **GOVERNING LAW AND DISPUTES RESOLUTION:**

10.1. This Agreement shall be governed by and construed in accordance with laws of India. The Dispute Resolution Section 10.1 (I) of this international assignment agreement is applicable with respect to international assignment(s) to all TCS geographies except for the countries as specified in Section 10.1 (II),(III) and (IV). Section 10.1 (II) of this international assignment agreement is applicable with respect to international assignment(s) to the USA only. Section 10.1 (III) of this international assignment agreement is applicable with respect to international assignment(s) to Canada only.Section 10.1 (IV) of this International Assignment Agreement is applicable with respect to international assignment(s) to Denmark, Norway, Sweden, Finland, Belgium, The Netherlands, Luxembourg, Germany, France, Switzerland, Italy, Poland, Hungary Slovakia, Spain, Chile, Mexico, Uruguay, Peru, Colombia, Argentina, Puerto Rico, Brazil, Ecuador China, Japan, Malaysia, Indonesia, Philippines, Singapore, Australia, Bangladesh, Fiji, Hong Kong, Macau, New Zealand, Republic of Korea, Taiwan, Thailand, Austria, Czech Republic, Estonia, Romania, Bulgaria, Trinidad and Tobago, Bahrain, Ethiopia, Israel, Kenya, Nigeria, Saudi Arabia, United Arab Emirates, Uganda, Ireland, United Kingdom, Isle of Man(IOM) only.

10.1 (I) Any and all controversies or claims arising out of or relating to the Employee's international assignment(s), Compensation, Terms and Conditions of Employment,this

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Agreement, including its validity or its breach, both the parties irrevocably submit to the non-exclusive jurisdiction of the Courts at Mumbai,India

10.1(II) Claims. Except as set forth in section 9.2, any and all controversies or claims arising out of or relating to the Employee's international assignment(s), Compensation, Terms and Conditions of Employment, this Agreement, including its validity or its breach, shall be submitted to and finally settled by binding Arbitration by a Single Arbitrator or panel of three Arbitrators as provided below. Examples of claims that must be resolved through Arbitration include, but are not limited to: claims for wages or other compensation due; claims for breach of any contract or covenant (express or implied); tort claims; claims for discrimination (including but not limited to, race, sex, sexual orientation, religion, national origin, age, marital status, disability, or medical condition); claims for violation of any federal, state or other governmental law, statute regulation, or ordinance (for example: claims arising under Title VII of the Civil Rights Act, the Americans with Disabilities Act, the Family and Medical Leave Act, the Age Discrimination in Employment Act, the California Family Rights Act, the California Labor Code, and the California Fair Employment and Housing Act); and claims for benefits.

A) During your period of international assignment(s) in the United States: This Section of the Agreement does not prohibit the filing of the following: (1) an administrative charge to any state or local fair employment practices agency; (2) an administrative charge to the National Labor Relations Board; (3) an agency charge or complaint to exhaust an administrative remedy; or (4) any other charge filed with or communication to a federal, state or local government office, official or agency.

B) Claims Not Covered by This Agreement While on international assignment(s) in the United States: Claims for workers' compensation, unemployment compensation benefits or those disputes that are not subject to pre-dispute arbitration agreements as provided by an Act of Congress, enforceable Executive Order, or U.S. Code of Federal Regulations; claims under an employee benefit or pension plan that either (1) specifies that its claims procedure shall culminate in an arbitration procedure different from this one, or (2) is underwritten by a commercial insurer which decides claims.

C) To the maximum extent permitted by law, Employee hereby waives any right to bring on behalf of persons other than Employee's self, or to otherwise participate with other persons in, any purported class, collective, or representative action (including but not limited to any representative action under the California Private Attorneys General Act ("PAGA"), or other federal, state or local statute or ordinance of similar effect). Employee understands, however, that to the maximum extent permitted by law, Employee retains the right to bring claims in arbitration, including PAGA claims, for Employee's self as an individual. This Agreement does not cover any dispute in which both (i) Employee is represented by legal

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counsel, and (ii) counsel has asserted a claim on Employee's behalf at the time this Agreement is made.

10.1(III) To the maximum extent permitted by law, Employee hereby waives any right to bring on behalf of persons other than Employee's self, or to otherwise participate with other persons in, any purported class, collective, or representative action. Employee understands, however, that to the maximum extent permitted by law, Employee retains the right to bring claims in arbitration, for Employee's self as an individual. This Agreement does not cover any dispute in which both (i) Employee is represented by legal counsel, and (ii) counsel has asserted a claim on Employee's behalf at the time this Agreement is made.

10.1(IV) The Parties will endeavor to amicably resolve disputes regarding this Agreement, its terms and its termination by negotiations. Such disputes shall be resolved by Arbitration as agreed to here in Section 10.2. Provided such disputes under this Agreement may also be referred to the Competent Court of the Country to which the Employee has been placed on international assignment (please refer to 10.1 above) if such disputes arise at the international location while the Employee is on an international assignment. Indian Law(s) applies to and shall be the governing law for all disputes arising out of or in connection with this International Assignment Agreement, unless the Laws of Country to which the Employee has been placed on international assignment (please refer to 10.1 above), mandates that the Laws of Country to which the Employee has been placed on international assignment shall apply and govern such disputes (in full or in part) or otherwise.

10.2 Venue and Arbitrator. The venue for arbitration shall be Mumbai, India. the Parties hereto, be referred to arbitration and such arbitration shall be conducted in accordance with the rules of arbitration of the Bombay Chamber of Commerce and Industry ("BCCI"), which rules, as modified from time to time, are deemed to be incorporated by reference into this clause (the "Arbitration Rules") by a sole arbitrator. The sole arbitrator as referred to above shall be appointed by the BCCI.

A) For any and all claims related to the employment relationship that are deemed not subject to arbitration in Mumbai, India, the Parties agree to arbitrate said employment relationship claims in the US State in which the employee is or was last employed by TCS. Accordingly, the Federal Arbitration Act shall govern the enforcement and all proceedings pursuant to this section of the International Assignment(s) Agreement. To the extent that the Federal Arbitration Act is inapplicable, or held not to require arbitration of a particular claim or claims, the arbitration law of the state in which Employee works or worked for TCS shall apply.

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B) For arbitrations conducted in the United States, employees may learn more about their legal rights by visiting websites hosted by Federal and State Governmental Agencies. Current links to some of these federal websites are listed below, although they are subject to change by the hosting agencies: www.dol.gov; www.dol.gov/compliance/laws/comp-flsa.htm; ww.dol.gov/dol/topic/wages/index.htm and www.eeoc.gov/.

10.3 Governing Law. The arbitration proceeding shall be governed and conducted in accordance with the Arbitration and Conciliation Act, 1996 (the "Arbitration Act") and the Rules made thereunder. For Arbitrations conducted in Mumbai, India the Sole Arbitrator shall deliver the Award in the Arbitration Proceedings within three (3) months from reference of a dispute to Arbitration. The Parties agree that the award passed by the Sole Arbitrator shall be final and binding upon the Parties, and that the Parties shall not be entitled to commence or maintain any action in any Court of Law in respect of any matter in dispute arising from or in relation to this Agreement, except for the enforcement of an Arbitral Award passed by the Sole Arbitrator. Each Party shall bear its own costs, and the fees of the Sole Arbitrator shall be divided equally between the Parties or in such other fashion as the sole arbitrator so orders, which order shall prevail.

For Arbitrations conducted in the United States, the Federal Arbitration Act shall govern the enforcement and all proceedings pursuant to this section of the International Assignment(s) Agreement. To the extent that the Federal Arbitration Act is inapplicable, or held not to require arbitration of a particular claim or claims,the Arbitration Law of the State in which Employee works or last worked for TCS shall apply.

A) Arbitration Procedure for Arbitrations Conducted in the United States: The arbitration will be conducted under the Employment Arbitration Rules and Procedures of the American Arbitration Association ("AAA Rules") then in effect. The AAA Rules are currently available at http://www.adr.org. TCS will supply Employee with a copy of those rules upon request. The single neutral Arbitrator shall be either a retired judge, or an attorney who is experienced in employment law and licensed to practice law in the state in which the arbitration is convened (the "Arbitrator"), selected pursuant to AAA rules or by mutual agreement of the parties.

B) Arbitration Fees and Costs for Arbitrations Conducted in the United States: The fees of the Arbitrator and all other costs that are unique to the Arbitration proceedings shall be paid by TCS to the extent required by law. Otherwise, each party shall be solely responsible for paying his/her/its own costs for the Arbitration, including but not limited to attorneys' fees. However, if either Party prevails on a claim which affords the prevailing party attorneys' fees pursuant to law, statute, or contract, the Arbitrator may Award

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reasonable attorneys' fees to the prevailing party.

EMPLOYEE AND TCS UNDERSTAND THAT PROMISES BY TCS AND BY EMPLOYEE TO ARBITRATE DIFFERENCES, RATHER THAN LITIGATE THEM BEFORE COURTS OR OTHER BODIES, PROVIDE CONSIDERATION FOR EACH OTHER. EMPLOYEE AND TCS UNDERSTAND THAT BY AGREEING TO CLAUSE 10, THE EMPLOYEE AND TCS ARE GIVING UP THEIR RIGHT TO A JURY TRIAL.

EMPLOYEE ACKNOWLEDGES THAT EMPLOYEE HAS CAREFULLY READ CLAUSE 10, THAT EMPLOYEE UNDERSTANDS ITS TERMS, THAT ALL UNDERSTANDING AND AGREEMENT BETWEEN TCS AND EMPLOYEE RELATING TO THE SUBJECT COVERED IN CLAUSE 10 ARE CONTAINED IN IT, AND THAT EMPLOYEE HAS ACCEPTED CLAUSE 10 VOLUNTARILY AND NOT IN RELIANCE ON ANY PROMISES OR REPRESENTATIONS BY TCS OTHER THAN THOSE CONTAINED IN CLAUSE 10 ITSELF.

BY ACCEPTING CLAUSE 10, TCS AND EMPLOYEE AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN THEIR INDIVIDUAL CAPACITIES AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, REPRESENTATIVE OR COLLECTIVE PROCEEDING.

11. **OTHER TERMS**

11.1 Acknowledgement: The Employee has understood the contents and the terms of this Agreement and accepts and agrees to them. The Employee agrees to comply with the policies of TCS including but not limited to the TCS International Assignment Policy, the Tata Code of Conduct and other Human Resources Policies, as applicable. These policies of TCS form an integral part of this Agreement.

11.2 Non-assignment by Employee: Neither this Agreement nor any rights hereunder may be assigned by the Employee without prior written consent of TCS.

11.3 Waiver: Failure of TCS or the Employee to enforce any of the provisions of this Agreement or any rights with respect thereto shall in no way be considered to be a waiver of such provisions or rights or in any way affect the validity of this Agreement.

11.4 Severability: If any term, provision, covenant or condition of this Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable, the validity and enforceability of the remaining terms, provisions, covenants and conditions of this Agreement shall not in any way be affected, impaired or invalidated.

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11.5 Modification: Any amendment or modification to this Agreement may be made only in writing, signed by both parties.

11.6 No Representations: In executing this Agreement, the Employee has not relied upon, and is not relying upon, any representation or statement made by TCS, or by any agent or representative of TCS, with regard to the subject matter of this Agreement or otherwise, other than those specifically stated in this Agreement.

11.7 Supersession: This Agreement supersedes any prior or subsisting agreement, correspondence or arrangement, including but not limited to any service agreement or contract of employment (oral or otherwise), made between TCS and the Employee in relation to his/her employment and any such agreement(s) shall be deemed to have been terminated by mutual consent with effect from the date of signing of this Agreement.

11.8 Indemnification: The Employee confirms and acknowledges that any act on his/her part outside the scope of international assignment(s) as contemplated under this Agreement or contrary to the applicable laws of the international location(s), would, apart from rendering the Employee liable for causing loss of reputation, monetary loss, prejudice, harm and inconvenience to TCS, will also render the Employee liable for such action as may be prescribed under the applicable law of the international location(s). The Employee undertakes to indemnify and always keep TCS indemnified and harmless at all times in respect to, and against, any losses, damages, actions, costs, charges and expenses that may be suffered or incurred by TCS due to any such acts or omissions of the Employee.

11.9 Notices. All communications between TCS and the Employee shall be deemed to have been effectively served if sent by registered or certified mail to the following addresses:

TCS:Tata Consultancy Services Ltd., (TCS House) Raveline Street 21 DS Marg, Fort Mumbai 400001 Maharashtra

EMPLOYEE:Ms.Swati Saha,Uttar Bhabanipur(Palpara), Po-Chakda, Dist-Nadia, Wb-741222, , Nadia, Wb, India

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Kindly accept the governing terms and condition of this International Assignment Agreement by signing herein below.

For Tata Consultancy Services Limited



(Authorized Signatory)

Name:Chandrasekaran Ramkumar

Designation:Global Head - RMG

I hereby declare the details of **Annexure '1'(including Exhibits)**, which contains to the governing terms and conditions of the International Assignment Agreement, as communicated to me are read, understood and accepted by me in totality.

Signature: _____

Name: Ms.Swati Saha

Employee No: 196311

Place: _____

Date: _____

TATA CONSULTANCY SERVICES
Tata Consultancy Services Limited
9th Floor Nirmal Building Nariman Point Mumbai 400 021
Tel 91 22 6778 9595 Fax 91 22 6778 9660 e-mail corporate.office@tcs.com website www.tcs.com
Corporate Identification No. (CIN): L22210MH1995PLC084781